

Praveen Bano v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 5 September 2016 · WRIT - C No. 41368 of 2016 · **Writ disposed of. Mandamus to restore electricity refused until Annexures 4.2 and 4.4 formalities are completed; thereafter the competent authority to consider the request preferably within two weeks.**

HEADNOTE

A tenant seeking restoration of electricity, treated as a new-connection request, cannot obtain mandamus unless the prerequisite formalities under Annexures 4.2 and 4.4 of the U.P. Electricity Supply Code, 2005 are completed. On completion, the competent authority is to consider the request, preferably within two weeks.

FACTUAL SUMMARY

Praveen Bano, a claimant-tenant of a Varanasi residence in dispute with her landlord, had on 2 May 2016 obtained a direction that the Executive Engineer restore electricity within ten days after she completed the required formalities. She said she had complied, but the Sub-Divisional Officer then demanded further steps. She sought mandamus for restoration. The licensee contended she was seeking a new connection under the 2005 Supply Code without completing Annexures 4.2 and 4.4.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::Annexure 4.2

new-connection-prerequisite-formalities

HOLDING

Mandamus to restore electricity to a tenant's premises will not issue unless the applicant first completes the prerequisite formalities in Annexures 4.2 and 4.4 of the U.P. Electricity Supply Code, 2005; once those formalities are completed, the competent authority is to consider the request, preferably within two weeks. ¶ 1

FLAG Court referred to 'Annexures 4.2 and 4.4'. Catalog has Annexure 4.2 and clause 4.4, not Annexure 4.4.

PRINCIPLE TAGS

clause-4.4-occupant-connection-on-indemnity-bond A tenant seeking restoration of electricity, treated as a new-connection request, cannot obtain mandamus unless the prerequisite formalities under Annexures 4.2 and 4.4 of the U.P. Electricity Supply Code, 2005 are completed.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER HAD ALREADY COMPLETED THE CODE FORMALITIES, AS SHE CLAIMED

The Court proceeded on the footing that the SDO had asked her to fulfil Annexures 4.2 and 4.4 and she had come to Court instead of complying. ¶ 1